



CHAPTER cxvi.

An Act to confirm certain Provisional Orders made by the Board of Trade under the Gas and Water Works Facilities Act 1870 relating to Bolsover Gas Denbigh Water Formby Gas Hayling Water and Staveley Gas. A.D. 1905.
[4th August 1905.]

WHEREAS under the authority of the Gas and Water Works Facilities Act 1870 the Board of Trade have made the Provisional Orders set out in the schedule to this Act annexed: 33 & 34 Vict.
c. 70.

And whereas a Provisional Order made by the Board of Trade under the authority of the said Act is not of any validity or force whatsoever until the confirmation thereof by Act of Parliament:

And whereas it is expedient that the Provisional Orders made by the Board of Trade as aforesaid and set out in the schedule to this Act be confirmed:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the Gas and Water Orders Confirmation (No. 1) Act 1905. Short title.

2. The Orders as set out in the schedule to this Act shall be and the same are hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full validity and effect. Confirmation
of Orders in
schedule.

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Act, 1905.

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SCHEDULE.

LIST OF ORDERS.

BOLSOVER GAS.—Order empowering the Bolsover Gaslight and Coke Company Limited to raise additional capital and for other purposes.

DENBIGH WATER.—Order enabling the Denbigh Waterworks Company to raise additional capital and for other purposes.

FORMBY GAS.—Order empowering the Formby Gas Company Limited to raise additional capital for the purposes of their undertaking and for other purposes.

HAYLING WATER.—Order empowering the South Hayling Water Company Limited to raise additional capital and for other purposes.

STAVELEY GAS.—Order empowering the Staveley Gas Light and Coke Company Limited to maintain and continue gasworks and to manufacture and supply gas in the parish of Staveley in the county of Derby and for other purposes.

BOLSOVER GAS.

A.D. 1905.

Order empowering the Bolsover Gaslight and Coke Company Limited to raise additional capital and for other purposes. *Bolsover.*

1. This Order may be cited as the Bolsover Gas Order 1905. Short title.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order." Commence-
ment of Order.

3. The Bolsover Gas Order 1894 (in this Order referred to as "the Order of 1894") and this Order shall be construed together except so far as such construction will be inconsistent with or repugnant to the provisions of this Order and in this Order the expression "the undertaking" means the undertaking authorised by that Order as amended by this Order. Construction
of Order.

Undertakers.

4. The Bolsover Gaslight and Coke Company Limited shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers." Undertakers.

New Capital.

5. The limitations prescribed by the Order of 1894 in respect of the amount of the share capital of the Undertakers for the purposes of the undertaking shall not prevent the Undertakers from raising for such purposes further share capital (in this Order referred to as "the new capital") not exceeding ten thousand pounds including any premiums that may be obtained on the sale of any shares or stock under the provisions of this Order. Provided that the share capital of the Undertakers for the purposes of the undertaking shall not exceed in the whole fifteen thousand pounds unless the Undertakers are hereafter authorised to raise further share capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament. New capital.

6. The Undertakers shall when any shares or stock forming part of the new capital are to be issued and before offering the same to the holder of any other share or stock of the Undertakers and whether the ordinary shares or ordinary stock of the Undertakers are or is at a premium or not offer the same for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers may by special resolution determine. Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of shares or stock and that the reserved price put upon such shares or stock shall not be less than the nominal amount thereof and notice of the amount of such reserved price shall be sent by the Undertakers in a sealed letter to the New shares or
stock to be
offered by auc-
tion or tender.

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A D. 1905. Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner and provided that no priority of tender shall be allowed to any holder of shares or stock of the Undertakers except that if the bidding or offer by tender made by any holder of shares or stock be the same in amount as the bidding or offer made by any other person for the same lot the bidding or offer of such holder shall be accepted in preference.

Purchase money of capital sold to be paid within three months. 7. It shall be one of the conditions of any sale of shares or stock under the provisions of this Order that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Undertakers within three months after such sale.

Notice to be given as to sale of shares or stock. 8. The intention to sell any shares or stock by auction or tender under the provisions of this Order shall be communicated by the Undertakers in writing to the clerk of every local authority having jurisdiction within the limits of supply and to the secretary of the committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised by the Undertakers once in each of two consecutive weeks in one or more newspapers circulating within the limits of supply.

Shares or stock not sold by auction or tender to be offered to holders of ordinary shares or stock. 9. When any shares or stock have been offered for sale by auction or tender under the provisions of this Order and not sold the same shall be offered at the reserved price put upon the same respectively for the purpose of sale by auction or tender to the holders of the ordinary shares or ordinary stock of the Undertakers in such manner as may be prescribed by a special resolution passed by the Undertakers. Provided that any share or stock so offered and not accepted within the time prescribed by such resolution shall again be offered for sale by public auction or tender in the manner and subject to the provisions of this Order with respect to the sale of shares or stock forming part of the new capital and the reserve put upon any such shares or stock may upon such second or any subsequent auction or tender if the directors of the Undertakers think fit be less than the nominal value of such shares or stock and any shares or stock not then sold shall be again offered to the holders of ordinary shares or ordinary stock at the last-mentioned reserved price and so until the whole of such shares or stock is sold.

Application of premium arising on issue of shares or stock. 10. Any sum of money which may arise from the issue of any shares or stock under the provisions of this Order by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Undertakers but shall be expended in extending or improving the works of the Undertakers or in paying off money borrowed or owing on mortgage by the Undertakers and shall not be considered as part of the capital of the Undertakers entitled to dividend.

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Act, 1905.

11. Except as by section 29 of the Order of 1894 expressly provided the Undertakers shall not in any year declare or make out of their profits any larger dividends on the new capital than seven pounds in respect of every hundred pounds actually paid up of so much of such new capital as may be issued as ordinary capital or six pounds in respect of every one hundred pounds actually paid up of so much of such new capital as may be issued as preference capital. A.D. 1905.
Bolsaver.
 Limits of dividend on capital.

12. In case in any year or in any half year (if the Undertakers declare a dividend half-yearly) the net revenues of the Undertakers applicable to dividend are insufficient to pay the full amount of the prescribed rates on each class of ordinary shares or stock in the capital authorised to be raised by the Order of 1894 and the new capital a proportionate reduction shall be made in the dividends payable on each class. Dividends on different classes of ordinary shares or stock to be paid proportionately.

13. The amount of all moneys borrowed by the Undertakers and secured by mortgage of the undertaking shall not at any time exceed in the whole one fourth of the amount of capital of the Undertakers at the time actually raised by the issue of shares or stock including any premium that may be obtained on sale of any shares or stock under the provisions of this Order and no higher rate of interest than five pounds per centum per annum shall be paid by the Undertakers without the consent of the Board of Trade in respect of any moneys borrowed by the Undertakers after the commencement of this Order and secured as aforesaid. Limit of borrowing powers.

14. All moneys raised under this Order shall be applied for the purposes of the undertaking to which capital is properly applicable. Application of moneys.

Gas Supply.

15. Every consumer of gas supplied by the Undertakers who uses a gas engine shall if required to do so by the Undertakers use an anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and if any consumer shall make default in complying with the provisions of this section the Undertakers may cease to supply him with gas. The Undertakers shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removing testing inspecting and replacing to be done at the expense of the Undertakers if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer. Anti-fluctuators for gas engines.

16. If a person requiring a supply of gas from the Undertakers for any premises occupies or has occupied other premises at which gas was supplied to him by the Undertakers and has not paid all gas or meter rent due from him to the Undertakers they may refuse to furnish to him a supply of gas until he pays the same. Power to refuse to supply persons in debt for other premises.

17. The Undertakers may if they think fit allow discounts or rebates not exceeding in any case twenty per centum to the consumers of gas in consideration of prompt payment of gas rent or of large consumption upon such scale and subject to such conditions and regulations as may be prescribed Discounts.

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Act, 1905.

A.D. 1905. by the Undertakers Provided that such discounts or rebates shall be of equal amount under like circumstances to all consumers Provided also that notice of the effect of this enactment shall be endorsed on every demand note for gas rent.

Exemption of fittings &c. let for hire from distress for rent.

18. Any fittings engines stoves ranges pipes or other apparatus or appliances let for hire under the provisions of the Order of 1894 shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or in proceedings in bankruptcy against the persons in whose possession the same may be provided that such fittings engines stoves ranges pipes or other apparatus or appliances have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Undertakers as the actual owners thereof.

Costs of Order.

19. All the costs charges and expenses of and incidental and preliminary to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

DENBIGH WATER.

Denbigh.

Order enabling the Denbigh Waterworks Company to raise additional capital and for other purposes.

Short title.

1. This Order may be cited as the Denbigh Waterworks Order 1905.

Commencement.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."

Construction of Order.

3. The Denbigh Waterworks Act 1863 (in this Order referred to as "the Act of 1863") the Denbigh Water Order 1873 and the Denbigh Water Order 1882 (in this Order collectively referred to as "the Undertakers' Act and Orders") and this Order shall be construed together except so far as such construction would be inconsistent with or repugnant to the provisions of this Order.

Incorporation of general Acts.

4. The provisions of the Companies Clauses Consolidation Acts 1845 to 1889 with respect to the several matters following (that is to say):—

The distribution of the capital of the Company into shares;

The transfer or transmission of shares;

The payment of subscriptions and the means of enforcing the payment of calls;

The forfeiture of shares for non-payment of calls;

The remedies of creditors of the company against the shareholders;

The borrowing of money by the company on mortgage or bond;

The consolidation of the shares into stock;

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The general meetings of the company and the exercise of the right of voting by the shareholders ; A.D. 1905.
Denbigh.

The making of dividends ;

The giving of notices ; and

The provision to be made for affording access to the special Act by all parties interested ;

and Part I. (relating to cancellation and surrender of shares) and Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by the Companies Clauses Act 1869 and the Waterworks Clauses Acts 1847 and 1863 are (except where expressly varied by this Order) incorporated with and form part of this Order.

For the purpose of such incorporation the term "special Act" in the said Acts shall be construed to mean this Order and the term "company" shall mean the Undertakers.

Undertakers.

5. The Denbigh Waterworks Company incorporated by the Act of 1863 shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Additional Capital.

6. In addition to the capital already authorised to be raised by the Undertakers they may— Power to raise additional capital.

- (1) Raise any further sums not exceeding in the whole ten thousand pounds by the creation and issue at their option of new ordinary shares or stock or partly by new ordinary shares or stock and partly by new preference shares or stock (in this Order referred to as "the new capital") but the Undertakers shall not issue under the authority of this Order any share of less nominal value than ten pounds nor shall any such share or any stock issued under the authority of this Order vest in the person accepting the same unless and until the full price of such share or stock including any premium obtained on the sale thereof as hereinafter provided shall have been paid in respect thereof. Provided that it shall not be lawful for the Undertakers to create and issue under the powers of this Order any greater nominal amount of capital than will be sufficient to produce including any premiums which may be obtained on the sale of the shares or stock authorised to be issued under the authority of this Order the sum of ten thousand pounds. And provided further that no more than five thousand pounds in the whole shall be raised under this Order by means of preference shares or stock :

- (2) Borrow on mortgage in respect of the new capital any sum or sums not exceeding in the whole one-fourth part of the amount payable in respect of the new capital at the time actually issued including

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the premiums (if any) realised on the sale thereof but no part thereof shall be borrowed until shares or stock for so much of the new capital in respect of which such borrowing powers are sought to be exercised together with the premiums (if any) realised on the sale thereof have been fully paid up and the Undertakers have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such shares or stock and premiums (if any) have been fully paid and upon production to such justice of the books of the Undertakers and such other evidence as he may think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

As to conversion of borrowed money into capital.

7. The Undertakers shall not have power to raise the money by this Order authorised to be borrowed on mortgage or by the creation and issue of debenture stock or any part thereof respectively by the creation of shares or stock instead of by borrowing or to convert into share capital any money borrowed under the provisions of this Order.

New shares or stock to be subject to same incidents as other shares or stock.

8. The new capital created by the Undertakers under this Order and the new shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if the new capital were part of the existing capital of the Undertakers of the same class or description and the new shares or stock were shares or stock in the capital The capital in new shares or stock shall form part of the capital of the Undertakers.

Dividend on new capital.

9. Every person who becomes entitled to shares or stock in the new capital shall in respect of the same be a holder of shares or stock in the capital of the Undertakers and shall be entitled to a dividend with the other holders of shares or stock of the same class or description proportioned to the whole amount from time to time called up and paid on the shares or stock so held by him.

Restriction as to votes in respect of preferential shares or stock.

10. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any shares or stock in the new capital to which a preferential dividend shall be assigned nor be qualified in respect of such shares to act as a director.

New shares or stock to be offered by auction or tender.

11. Notwithstanding anything in this Order contained the Undertakers shall when any shares or stock created under the powers of this Order are to be issued and before offering the same to the holder of any other shares and stock of the Undertakers and whether the ordinary shares or ordinary stock of the Undertakers are or is at a premium or not offer the same for sale by public auction or by tender in such manner at such times and subject to such conditions of sale as the Undertakers may determine Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of shares or stock and that the reserved price put upon such shares or stock shall not be less than the nominal value thereof and notice of the amount of such reserved price shall be sent by the Undertakers in a sealed letter to the Board of Trade not less than twenty-four hours before the day

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of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner and provided that no priority of tender shall be allowed to any holder of shares or stock of the Undertakers except that if the bidding or offer by tender made by any holder of shares or stock be the same in amount as the bidding or offer by tender made by any other person the bidding or offer of such holder shall be accepted in preference.

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Denbigh.

12. It shall be one of the conditions of any sale of shares or stock under this Order that the full price thereof including any premiums given by any purchaser at such sale shall be paid to the Undertakers within three months after such sale.

Purchase money of capital sold to be paid within three months.

13. The intention to sell any shares or stock by auction or by tender under the provisions of this Order shall be communicated in writing to the clerk of every local authority having jurisdiction within the limits of supply of the Undertakers and to the Secretary of the Committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within such limits of supply.

Notice to be given as to sale of shares or stock.

14. When any shares or stock created under the powers of this Order have been offered for sale by auction or tender and not sold the same shall be offered at the reserved price put upon the same respectively for the purpose of sale by auction or tender to the holders of ordinary shares or ordinary stock of the Undertakers in manner provided by the Companies Clauses Act 1863 Provided always that any shares or stock so offered and not accepted within the time prescribed by the said Act shall again be offered for sale by public auction or by tender in the manner and subject to the provisions of this Order with respect to the sale of shares or stock created under the powers of this Order and the reserve put upon such shares or stock may upon such second or any subsequent auction or tender if the directors of the Undertakers think fit be less than the nominal value thereof and any shares or stock not then sold by auction or tender shall be again offered to the holders of ordinary shares or ordinary stock at not less than the last-mentioned reserved price and so on until the whole of such shares or stock is sold.

Shares or stock not sold by auction or tender to be offered to holders of ordinary shares or stock.

15. Any sum of money which shall arise from the issue of any shares or stock under the provisions of this Order by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Undertakers but shall be expended in extending or improving the works of the Undertakers or in paying off money borrowed or owing on mortgage by the Undertakers and shall not be considered as part of the capital of the Undertakers entitled to dividend Provided that for the purpose of ascertaining the maximum amount of the reserve fund of the Undertakers the sums received by way of premium as aforesaid shall be reckoned as part of the nominal capital of the Undertakers.

Application of premium arising on issue of shares or stock.

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Denbigh.
Debenture
stock.

16. The Undertakers may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time after the commencement of this Order created and issued or granted by the Undertakers under any previous Act or Order or this Order or any subsequent Act or Order shall rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament Orders or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all such mortgages and certificates of debenture stock.

Existing mort-
gages to have
priority.

17. All mortgages and bonds granted by the Undertakers in pursuance of the powers of the Undertakers' Act and Orders before the commencement of this Order and which shall be subsisting at the date of such commencement shall during the continuance of such mortgages and bonds and subject to the provisions of the Acts under which such mortgages and bonds were respectively granted have priority over all mortgages to be granted under the authority of this Order but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Undertakers.

For appoint-
ment of
receiver.

18. Every provision of the Undertakers' Act and Orders with respect to the appointment of a receiver is hereby repealed but without prejudice to any appointment heretofore made or any proceedings pending at the commencement of this Order under any such provision and after the commencement of this Order the mortgagees of the Undertakers may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver and in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than two thousand pounds in the whole.

Rates of divi-
dend on shares
or stock in new
capital.

19. The Undertakers shall not in any one year make out of their profits any larger dividend on the new capital than at the rate of seven pounds in respect of every one hundred pounds actually paid up of so much of the new capital as shall be issued as ordinary capital or at the rate of six pounds in respect of every one hundred pounds actually paid up of so much of the new capital as may be issued as preference capital.

Dividends on
different
classes of or-
dinary capital
to be paid pro-
portionately.

20. In case in any half-year the net revenue of the Undertakers applicable to dividend should be insufficient to pay the full amount of the prescribed maximum rate of dividend on each class of ordinary shares or ordinary stock in the capital of the Undertakers a rateable reduction shall be made in the dividend of each class.

Limit of inter-
est on money
borrowed.

21. The Undertakers shall not without the consent of the Board of Trade pay interest at a higher rate than four pounds ten shillings per centum per annum in respect of any money borrowed on mortgage or raised by the creation and issue of debenture stock under the authority of this Order.

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22. All moneys raised under this Order whether by shares stock debenture stock or borrowing shall be applied only to the purposes of this Order or of the Undertakers' Act and Orders to which capital is properly applicable.

Denbigh.

Application of moneys raised under this Order.

23. The Undertakers may enter into and carry into effect agreements with any local authority company or person for the supply of water beyond the limits of supply to any such authority company or person respectively in bulk for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon. Provided that such supply shall not be given except with the consent of any company or person supplying water under parliamentary authority within the district to be supplied and of the local authority of that district nor if and so long as such supply would interfere with the supply of water for domestic purposes within the limits of supply.

Contracts for supplying water in bulk.

24. For preventing waste misuse undue consumption or contamination of the water of the Undertakers the following provisions shall be in force and have effect.

Regulations for preventing waste &c. of water.

The said provisions are as follows:—

- (1) The Undertakers may from time to time make regulations for the purpose of preventing the waste undue consumption or misuse or contamination of water and may by such regulations prescribe the size nature materials workmanship and strength and the mode of arrangement connection disconnection alteration and repair of the pipes meters cocks ferrules valves soil-pans water-closets baths tanks cisterns and other apparatus fittings means contrivances receptacles or appliances whatsoever to be used and forbid any arrangements and the use of the several things before mentioned or any or either of them which may allow or tend to waste or undue consumption misuse erroneous measurement or contamination :
- (2) No such regulations shall be of any force or effect unless and until the same shall have been submitted to and confirmed by the Local Government Board who are hereby empowered to confirm the same :
- (3) No such regulations shall be confirmed until after the expiration of one month after notice in writing to submit the same for confirmation together with a copy of the proposed regulations shall have been given by or on behalf of the Undertakers to the local authorities within the limits of supply who may within the said period of one month make such representations to the Local Government Board as they see fit :
- (4) A copy of all such regulations in force for the time being shall be kept at the office of the Undertakers and all persons may at reasonable times inspect such copy without payment and the Undertakers shall cause to be delivered a printed copy of all regulations for the time being in force to every person applying

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for the same on payment of a sum not exceeding twopence for each copy :

- (5) A printed copy of any such regulations dated and purporting to have been made as aforesaid and to be sealed with the seal of the Undertakers and to have been confirmed by the Local Government Board shall be evidence until the contrary be proved in all legal proceedings of the due making confirmation publication and existence of such regulations without further or other proof :
- (6) In case of failure of any person to observe such regulations as are for the time being in force the Undertakers may if they think fit after twenty-four hours' notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any pipe meter valve cock ferrule tank cistern bath soil-pan watercloset or other apparatus means contrivance or receptacle fittings or appliances belonging to or used by such person and not being in accordance with the requirements of such regulations and the expense of every such repair replacement or alteration shall be repaid to the Undertakers by the person on whose credit the water is supplied and may be recovered by them as water rates are recoverable :
- (7) Any person who shall offend against any of such regulations shall (without prejudice to any other right or remedy for the protection of the Undertakers or punishment of the offender) be liable to a penalty not exceeding five pounds for each offence and to a further daily penalty not exceeding forty shillings for each day or part of a day whereon such offence shall occur after conviction thereof and the Undertakers may in addition thereto recover the amount of any damages sustained by them.

Costs of Order.

25. All costs charges and expenses of and incidental to the applying for preparing obtaining and confirming of this Order and otherwise in relation thereto shall be paid by the Undertakers.

FORMBY GAS.

Formby.

Order empowering the Formby Gas Company Limited to raise additional capital for the purposes of their undertaking and for other purposes.

Preliminary.

Short title.

1. This Order may be cited as the Formby Gas Order 1905.

Commence-
ment of Order.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."

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Act, 1905.

3. The Formby Gas Order 1878 (in this Order referred to as "the Order of 1878") as amended by this Order and this Order shall be construed together except so far as such construction would be inconsistent with or repugnant to the provisions of this Order and in this Order the expression "the undertaking" means the undertaking authorised by the Order of 1878 as amended by this Order.

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Formby.
 Construction of Order.

4. The provisions of the Gasworks Clauses Act 1847 and the Gasworks Clauses Act 1871 are incorporated with this Order (except where expressly varied by the Order of 1878 or this Order) and form part of this Order For the purposes of such incorporation the term "special Act" in the said Acts respectively shall be construed to mean this Order.

Incorporation of Acts.

5. The several words and expressions to which by any Act wholly or partially incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings unless there be something in the subject or context repugnant to such construction.

Interpretation.

Undertakers.

6. The Formby Gas Company Limited shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Undertakers.

New Capital.

7. The limitation prescribed by the Order of 1878 with respect to the amount of the share capital of the Undertakers for the purposes of the undertaking shall not prevent the Undertakers from raising for such purposes further share capital (in this Order referred to as "the additional capital") not exceeding sixteen thousand pounds including any premium that may be obtained on the sale of any shares under the provisions of this Order Provided that the share capital of the Undertakers for the purposes of their undertaking shall not exceed in the whole twenty-six thousand pounds unless the Undertakers are hereafter authorised to raise further share capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament.

New capital.

8. The Undertakers shall when any shares or stock created under the powers of this Order are or is to be issued and before offering the same to the holder of any other shares or stock of the Undertakers and whether the ordinary shares or ordinary stock of the Undertakers are or is at a premium or not offer the same for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers may by special resolution determine Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of shares or stock and that the reserved price put upon such shares or stock shall not be less than the nominal value thereof and notice of the amount of such reserved price shall be sent by the Undertakers in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction

New shares or stock to be offered by auction or tender.

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Formby. letter may be opened after such day of auction or last day for the reception
of tenders and not sooner and provided that no priority of tender shall be
allowed to any holder of shares or stock of the Undertakers except that if
the bidding or offer by tender of any holder of shares or stock be the same
in amount as the bidding or offer made by any other person for the same
lot the bidding or offer of such holder shall be accepted in preference.

Purchase money of capital sold to be paid within three months. 9. It shall be one of the conditions of any sale of shares or stock under the provisions of this Order that the full price thereof including any premiums given by any purchaser at such sale shall be paid to the Undertakers within three months after such sale.

Notice to be given as to sale of shares or stock. 10. The intention to sell any shares or stock by auction or tender under the provisions of this Order shall be communicated by the Undertakers in writing to the clerk of every local authority having jurisdiction within the limits of supply and to the Secretary of the Committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised by the Undertakers once in each of two consecutive weeks in one or more newspapers circulating within the limits of supply.

Shares or stock not sold by auction or tender to be offered to holders of ordinary shares or stock and others. 11. When any shares or stock have been offered for sale by auction or tender under the provisions of this Order and not sold the same may be disposed of by the directors of the Undertakers at a price not less than the reserved price put upon the same respectively for the purpose of sale by auction or tender or may be offered at such reserved price to the holders of the ordinary shares or ordinary stock of the Undertakers in such manner as may be prescribed by a special resolution passed by the Undertakers or to the consumers of gas supplied by the Undertakers or to employees of the Undertakers or their other customers or partly to one and partly to another or others. Provided always that any shares or stock not so disposed of or so offered and not accepted within the time prescribed by such resolution or in the case of shares or stock offered to such employees or consumers and customers within the time limited by the directors of the Undertakers shall again be offered for sale by public auction or tender in the manner and subject to the provisions of this Order with respect to the sale of shares or stock forming part of the additional capital and the reserve put upon such shares or stock may upon such second or any subsequent offer for sale by auction or tender if the directors of the Undertakers think fit be less than the nominal value thereof and any shares or stock not then sold may be disposed of by the directors or offered to the holders of ordinary shares or ordinary stock or such employees or consumers and customers at not less than the last-mentioned reserved price and so on until the whole amount of such shares or stock is sold.

Application of premium arising on issue of shares or stock. 12. Any sum of money which may arise from the issue of any shares or stock under the provisions of this Order by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered

[5 EDW. 7.] *Gas and Water Orders Confirmation (No. 1)* [Ch. cxvi.]
Act, 1905.

as profits of the Undertakers but shall be expended in extending or improving the works of the Undertakers or in paying off money borrowed or owing on mortgage by the Undertakers and shall not be considered as part of the capital of the Undertakers entitled to dividend. A.D. 1905.
Formby

13. The Undertakers shall not in any year declare or make out of their profits any larger dividends on the additional capital than seven pounds in respect of every one hundred pounds actually paid up of so much of the additional capital as may be issued as ordinary capital or five pounds in respect of every one hundred pounds actually paid up as aforesaid of so much of the additional capital as may be issued as preference capital. Dividends on additional capital limited.

14. In case in any year or in any half year (if the Undertakers declare a dividend half-yearly) the net revenues of the Undertakers applicable to dividend are insufficient to pay the full amount of the prescribed rates of dividend on each class of ordinary shares or stock of the Undertakers a proportionate reduction shall be made in the dividends payable on each class other than preference shares or stock. Dividends on different classes of ordinary shares or stock to be paid proportionately.

15. The amount of all moneys borrowed by the Undertakers and secured by mortgage of the undertaking shall not at any time exceed in the whole one fourth of the amount of the capital of the Undertakers for the purposes of the undertaking actually raised by the issue of shares or stock under the provisions of this Order and no higher rate of interest than five pounds per centum per annum shall be paid by the Undertakers without the consent of the Board of Trade in respect of any moneys borrowed by the Undertakers after the commencement of this Order and secured as aforesaid. Limit of borrowing powers.

16. All moneys raised under this Order shall be applied to the purposes of the undertaking to which capital is properly applicable. Application of moneys.

Price of Gas.

17. From and after the first quarter day after the commencement of this Order section 12 of the Order of 1878 shall be amended by the substitution of the words "five shillings" for the words "six shillings and sixpence" and the said section shall be read and construed accordingly. Price of gas.

18. For the protection of the district council for the time being having jurisdiction in the parish of Formby the following provision shall have effect:— Undertakers to extend their mains for public lighting.

The Undertakers shall within eighteen months of the commencement of this Order provide and lay at their own cost all necessary mains for the public lighting of the following streets and highways in the parish of Formby to wit Cheapside Cockle Lane Sefton Road so much of Kirklake Road as lies between Formby Railway Station and Saint Luke's Parish Room and so much of King's Road as lies between its junction with Duke Street and its junction with Phillips Lane.

[Ch. cxvi.] *Gas and Water Orders Confirmation (No. 1) [5 Edw. 7.]*
Act, 1905.

A.D. 1905.

Miscellaneous.

Formby.

As to construction and placing of pipes &c. between mains and meters.

19. In order to enable the Undertakers to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

- (1) The Undertakers may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer either in the first instance or on the occasion of any renewal between the Undertakers' mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises:
- (2) The Undertakers may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time:
- (3) The specification shall be published once in each of two newspapers circulating in the limits of supply of the Undertakers and a copy thereof shall be kept exhibited in the office of the Undertakers:
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Undertakers' main but within the outside wall of the building:
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Undertakers and the pipe shall not be covered over until the expiration of twenty-four hours from the service of such notice on the Undertakers. Any officer of the Undertakers duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Undertakers' specification or if the meter is not placed as required by this section the Undertakers may refuse to supply gas to the premises until the provisions of this section have been complied with:
- (6) Any persons to whom the Undertakers refuse a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Undertakers' specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

Fittings let for hire not subject to distress.

20. No gas engines gas stoves fittings articles and things (in this section called "fittings") connected with the supply or use of gas let for hire by the Undertakers shall be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a

[5 EDW. 7.] *Gas and Water Orders Confirmation (No. 1)* [Ch. cxvi.]
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distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Undertakers as the actual owners thereof. A.D. 1905.

Formby.

21. Every consumer of gas supplied by the Undertakers who uses a gas engine shall if required to do so by the Undertakers use an anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and if any consumer shall make default in complying with the provisions of this section the Undertakers may cease to supply him with gas. The Undertakers shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Undertakers if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer. Anti-fluctuators for gas engines.

22. Twenty-four hours' notice in writing shall be given to the Undertakers by every gas consumer before he shall quit any premises supplied with gas by meter by the Undertakers and in default of such notice the consumer so quitting shall be liable to pay to the Undertakers the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier shall require the Undertakers to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be endorsed on every demand note for gas rent payable to the Undertakers. Gas consumers to give notice to Undertakers before leaving.

23. A notice to the Undertakers from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office for the time being of the Undertakers. Notice of discontinuance.

24. If a person requiring a supply of gas from the Undertakers occupies or has occupied other premises at which gas was supplied to him by the Undertakers and has not paid all gas or meter rent or other moneys due from him to the Undertakers they may refuse to furnish to him a supply of gas until he pays the same. Power to refuse to supply persons in debt for other premises.

25. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Undertakers shall be paid by or to the Undertakers to or by the consumer as the case may be and shall be recoverable in like manner as gas rents are recoverable by the Undertakers. Period of error in defective meters.

26. The Undertakers may but only with the consent of the owner of the soil of such street or road upon the application of the owner or occupier of any premises abutting on or being erected in any street or road laid out or made but not dedicated to public use supply such premises with gas and Power to lay pipes in streets not dedicated to public use.

[Ch. cxvi.] *Gas and Water Orders Confirmation (No. 1)* [5 Edw. 7.]
Act, 1905.

A.D. 1905. may lay and take up alter relay or renew in across or along such street or
Formby. road such pipes as may be requisite or proper for furnishing such supply
and the provisions of the Gasworks Clauses Act 1847 with respect to
the breaking up of streets for the purpose of laying pipes and for the
protection of pipes when laid so far as they are applicable for the purposes
of this section shall extend and apply mutatis mutandis to and for the
purposes thereof.

Discounts. 27. The Undertakers may if they think fit allow discounts or rebates
to consumers of gas or other customers of the Undertakers in consideration
of prompt payment of gas rents or other debts or large consumption not
exceeding in any case fifteen per centum upon such scale and subject to
such conditions and regulations as may be prescribed by the Undertakers
Provided that all discounts or rebates shall be of equal amount under like
circumstances to all consumers Provided also that notice of the effect of
this enactment shall be endorsed upon every demand note for gas rent.

Undertakers may acquire patent rights. 28. The Undertakers may acquire hold and use patent rights or licences
not being exclusive for the use of inventions in relation to the manufacture
of gas or in relation to the distribution or supply of gas and also in relation
to the manufacture conversion or utilisation of residual products and materials
arising in or resulting from the manufacture of gas.

Undertakers may contract with local authority for supply in bulk. 29. The Undertakers may contract with any local authority company
or person beyond the Undertakers' limits of supply (but only with the
consent in writing of the local authority of and of any company or person
supplying gas under parliamentary powers within the district within which
the supply is to be given) for the supply to them respectively of gas in
bulk upon such terms and conditions and for such periods not exceeding
in any case seven years from the making of the contract as shall be agreed
upon.

Costs of Order. 30. All the costs charges and expenses of and incidental to the applying
for preparing obtaining and confirming this Order and otherwise in relation
thereto shall be paid by the Undertakers.

HAYLING WATER.

Hayling. *Order empowering the South Hayling Water Company Limited to
raise additional capital and for other purposes.*

Short title. 1. This Order may be cited as the Hayling Water Order 1905.

Commence-
ment of Order. 2. This Order shall come into force and have effect upon the day when
the Act confirming this Order is passed which date is in this Order referred
to as "the commencement of this Order."

Construction
of Order. 3. The South Hayling Water Order 1895 the Hayling Water Order
1898 and the Hayling Water Order 1900 (in this Order referred to as "the

[5 Epw. 7.] *Gas and Water Orders Confirmation (No. 1) [Ch. cxvi.]*
Act, 1905.

Order of 1900") and this Order shall be construed together except so far as such construction would be inconsistent with or repugnant to the provisions of this Order. A.D. 1905.
Hayling.

4. The South Hayling Water Company Limited shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers." Undertakers.

5. The limitation prescribed by the Order of 1900 with respect to the amount of the share capital of the Undertakers for the purposes of the undertaking shall not prevent the Undertakers from raising for such purposes additional share capital (in this Order referred to as "the new capital") not exceeding eight thousand pounds including any premiums that may be obtained on the sale of any shares under the provisions of this Order. Provided that the share capital of the Undertakers for the said purposes shall not exceed in the whole eighteen thousand four hundred pounds unless the Undertakers are hereafter authorised to raise further share capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament. Additional capital.

6. The Undertakers shall when any shares or stock forming part of the new capital are to be issued and before offering the same to the holders of any other shares or stock of the Undertakers and whether the ordinary shares or ordinary stock of the Undertakers are or is at a premium or not offer the same for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers may by special resolution determine. Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of shares or stock and that the reserved price put upon such shares or stock shall not be less than the nominal value thereof and notice of the amount of such reserved price shall be sent by the Undertakers in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner and provided that no priority of tender shall be allowed to any holder of shares or stock of the Undertakers except that if the bidding or offer by tender of any holder of shares or stock be the same in amount as the bidding or offer made by any other person the bidding or offer of such holder of shares or stock shall be accepted in preference. New shares or stock to be offered by auction or tender.

7. It shall be one of the conditions of any sale of shares or stock under the provisions of this Order that the full price of each share including any premium given by any purchaser at such sale shall be paid to the Undertakers within three months after such sale. Purchase money of capital sold to be paid within three months.

8. The intention to sell any shares or stock by auction or tender under the provisions of this Order shall be communicated by the Undertakers in writing to the clerk of every local authority having jurisdiction within the limits of supply and to the secretary of the committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention Notice to be given of sale of shares or stock.

[Ch. cxvi.] *Gas and Water Orders Confirmation (No. 1)* [5 EDW. 7.]
Act, 1905.

A.D. 1905. shall be duly advertised by the Undertakers once in each of two consecutive
Hayling. weeks in one or more newspapers circulating within the limits of supply.

Shares or stock
not sold by
auction or
tender to be
offered to hold-
ers of ordinary
shares or stock.

9. When any shares or stock have been offered for sale by auction or tender under the provisions of this Order and not sold the same shall be offered at the reserved price put upon the same respectively for the purpose of sale by auction or tender to the holders of the ordinary shares or ordinary stock of the Undertakers in such manner as the Undertakers may by special resolution determine. Provided that any share or stock so offered and not accepted within the time prescribed by such resolution shall again be offered for sale by public auction or tender in the manner and subject to the provisions of this Order with respect to the sale of shares and stock forming part of the new capital and the reserve put upon such shares may upon such second or any subsequent auction or tender if the directors of the Undertakers think fit be less than the nominal value thereof and any shares or stock not then sold shall be again offered to the holders of ordinary shares or ordinary stock at the last-mentioned reserved price and so until the whole of such shares or stock is sold.

Application of
premium aris-
ing on issue of
shares or stock.

10. Any sum of money which may arise from the issue of any shares or stock under the provisions of this Order by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Undertakers but shall be expended in extending or improving the works of the Undertakers or in paying off money borrowed or owing on mortgage by the Undertakers and shall not be considered as part of the capital of the Undertakers entitled to dividend.

Limits of divi-
dend on new
capital.

11. The Undertakers shall not in any year declare or make out of their profits any larger dividends on the new capital than seven pounds in respect of every one hundred pounds actually paid up of so much of the new capital as may be issued as ordinary share capital or five pounds in respect of every one hundred pounds actually paid up of so much of the new capital as may be issued as preference share capital.

Limit of
borrowing
powers.

12. The amount of all moneys borrowed by the Undertakers and secured by mortgage of the undertaking shall not at any time exceed in the whole one fourth of the amount of the capital of the Undertakers actually raised by the issue of shares or stock including any premiums that may be obtained on the sale of any shares under the provisions of this Order and no higher rate of interest than five pounds per centum per annum shall be paid by the Undertakers without the consent of the Board of Trade in respect of any moneys borrowed by the Undertakers after the commencement of this Order and secured as aforesaid.

Dividends on
different
classes of
shares or stock
to be paid pro-
portionately.

13. In case in any year or in any half year (if the Undertakers declare a dividend half yearly) the net revenues of the Undertakers applicable to dividend are insufficient to pay the full amount of dividend at the prescribed maximum rate on each class of ordinary shares or stock in the capital of the Undertakers a proportionate reduction shall be made in the dividends payable on each class.

A.D. 1905.

14. All moneys raised under this Order shall be applied to the purposes of the undertaking to which capital is properly applicable.

Hayling.
 Application of
 money.

15. All the costs charges and expenses of and incidental to the applying for obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

Costs of Order.

STAVELEY GAS.

Order empowering the Staveley Gas Light and Coke Company Limited to maintain and continue Gasworks and to manufacture and supply Gas in the parish of Staveley in the county of Derby and for other purposes.

Staveley.

1. This Order may be cited as the Staveley Gas Order 1905.

Short title.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."

Commence-
 ment of Order.

3. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking) of the Gasworks Clauses Act 1847 and of the Gasworks Clauses Act 1871 are hereby incorporated with this Order (except where the same are expressly varied by this Order) and the said provisions of the said Gasworks Clauses Acts shall apply as well to the mains pipes and works of the Undertakers laid down or constructed before the commencement of this Order and situate within the limits of supply as defined by this Order as to any mains pipes or works which may be laid down or constructed under the authority of this Order.

Incorporation
 of Acts.

4. In this Order the expression "the prescribed rates" means the rates of dividend authorised by this Order on the capital of the Undertakers or such rates as reduced or increased in accordance with the provisions of this Order and the several words terms and expressions to which by any Act in whole or in part incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings and in the construction of this Order or of any such Act for the purposes of this Order the expression "the undertaking" shall include the gasworks and works connected therewith by this Order authorised to be maintained and continued.

Interpretation.

5. The limits within which the provisions of this Order shall be in force and have effect (in this Order referred to as "the limits of supply") shall be the parish of Staveley in the county of Derby.

Limits of
 Order.

[Ch. cxvi.] *Gas and Water Orders Confirmation (No. 1)* [5 Edw. 7.]
Act, 1905.

A.D. 1905.

Staveley.
Undertakers.

Undertakers.

6. The Staveley Gas Light and Coke Company Limited shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Capital.

Capital.

7. The share capital of the Undertakers for the purposes of the undertaking shall not exceed eleven thousand pounds consisting of the share capital already raised by the Undertakers of four thousand five hundred pounds (in this Order referred to as "the original capital") and of additional share capital (in this Order referred to as "the additional capital") to be issued subject to the provisions of this Order not exceeding six thousand five hundred pounds including any premiums which may be obtained on the sale of any shares under the provisions of this Order unless the Undertakers are hereafter authorised to raise for such purposes further additional share capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament.

New shares or
stock to be
offered by auc-
tion or tender.

8. The Undertakers shall when any shares or stock forming part of the additional capital are to be issued and before offering the same to the holder of any other share or stock of the Undertakers and whether the ordinary shares or ordinary stock in the capital of the Undertakers are or is at a premium or not offer the same for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers may by special resolution determine. Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of shares or stock and that the reserved price put upon such shares or stock shall not be less than the nominal value thereof and notice of the amount of such reserved price shall be sent by the Undertakers in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner and provided that no priority of tender shall be allowed to any holder of shares or stock of the Undertakers except that if the bidding or offer by tender made by any holder of shares or stock be the same in amount as the bidding or offer made by any other person for the same lot the bidding or offer of such holder shall be accepted in preference and preference may in like manner be given to any employee of the Undertakers or any consumer of gas supplied by the Undertakers whose bidding or offer by tender is the same in amount as the bidding or offer by tender made by any other person not being a holder of shares or stock of the Undertakers or employee or consumer as aforesaid.

Purchase
money of
shares or stock
to be paid
within three
months.

9. It shall be one of the conditions of any sale of shares or stock under the provisions of this Order that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Undertakers within three months of such sale.

Notice to be
given as to
sale of shares
or stock.

10. The intention to sell any shares or stock by auction or tender under the provisions of this Order shall be communicated by the Undertakers in

[5 EDW. 7.] *Gas and Water Orders Confirmation (No. 1)* [Ch. cxvi.]
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writing to the clerk of every local authority having jurisdiction within the limits of supply and to the secretary of the committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised by the Undertakers once in each of two consecutive weeks in one or more newspapers circulating within the limits of supply.

A.D. 1905.

Slaveley.

11. When any shares or stock have been offered for sale by auction or tender under the provisions of this Order and not sold the same shall be offered at the reserved price put upon the same respectively for the purpose of sale by auction or tender to the holders of the shares or stock of the Undertakers in such manner as may be prescribed by a special resolution passed by the Undertakers or to the employees of the Undertakers or to the consumers of gas supplied by the Undertakers or partly to one and partly to another or others of them Provided always that any shares or stock not so disposed of or so offered and not accepted in the case of shares or stock offered to the holders of shares or stock within the time prescribed by the said special resolution or in the case of shares or stock offered to such employees or consumers within the time limited by the directors of the Undertakers shall again be offered for sale by public auction or by tender in the manner and subject to the provisions of this Order with respect to the sale of shares or stock forming part of the additional capital except that the reserved price put upon such shares or stock may upon such second or any subsequent auction or tender if the directors of the undertaking think fit be less than the nominal value thereof and any shares or stock not then sold shall be again offered to the holders of ordinary shares or stock or to such employees or consumers at the last-mentioned reserved price and so on until the whole of such shares or stock is sold.

Shares or stock not sold by auction or tender to be offered to share or stock holders employees or consumers.

12. Any sum of money which may arise from the issue of any shares or stock under the provisions of this Order by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Undertakers but shall be expended in extending or improving the works of the Undertakers or in paying off money borrowed or owing on mortgage by the Undertakers and shall not be considered as part of the capital of the Undertakers entitled to dividend.

Application of premium arising on issue of shares or stock.

13. Except as in this Order otherwise provided the Undertakers shall not in any year declare or make out of their profits any larger dividends on the original and additional capital than ten pounds in respect of every one hundred pounds actually paid up of the original capital and seven pounds in respect of every one hundred pounds actually paid up of so much of the additional capital as may be issued as ordinary capital or five pounds in respect of every one hundred pounds actually paid up of so much of the additional capital as may be issued as preference capital.

Limits of dividend on capital.

14. In case in any year or in any half year if the Undertakers declare a dividend half yearly the net revenues of the Undertakers applicable to dividend are insufficient to pay the full amount of the prescribed rates on each class of

Dividends on different classes of shares or stock to be paid proportionately.

[Ch. cxvi.] *Gas and Water Orders Confirmation (No. 1)* [5 Edw]
Act, 1905.

A.D. 1905. ordinary shares or stock in the original and additional capital a proportionate reduction shall be made in the dividends payable on each class.

Staveley.

Limit of borrowing powers.

15. The amount of all moneys borrowed by the Undertakers and secured by mortgage of the undertaking shall not at any time exceed in the whole one fourth of the amount of the capital of the Undertakers at the time actually raised by the issue of shares or stock including any premiums that may be obtained on the sale of any shares or stock under the provisions of this Order and no higher rate of interest than five pounds per centum per annum shall be paid by the Undertakers without the consent of the Board of Trade in respect of any moneys borrowed by the Undertakers after the commencement of this Order and secured as aforesaid.

Purchase of Land.

Power to purchase additional land.

16. The Undertakers may for the purposes of the undertaking purchase or take on lease (by agreement but not otherwise) and hold in addition to the lands described in Schedule A to this Order annexed any lands which they may require Provided that they shall not at any time hold for such purposes more than three acres of land in the whole in addition to the lands described in the said schedule and that they shall not create or permit a nuisance on any such lands and that no lands shall be used by the Undertakers for the purpose of manufacturing gas or residual products or of storing gas except the lands described in the said schedule.

Maintenance and Continuance of Gasworks Manufacture and Sale of Gas Coke and Residual Products.

Undertakers may maintain and continue gasworks on lands described in Schedule A and may make and sell gas &c.

17. The Undertakers on the lands shown on the map deposited for the purposes of this Order and described in Schedule A to this Order while they are possessed of the same may maintain and continue alter and enlarge renew or discontinue their existing gasworks and works connected therewith for the manufacture and storage of gas and of coal and coke and ammoniacal liquor and they may subject to the provisions of this Order manufacture and store gas on such lands and supply and sell the same within the limits of supply and may on the same lands store coal-tar coke pitch and asphaltum and manufacture and store ammoniacal liquor and sulphate of ammonia and may sell and dispose of the same at their works and elsewhere and they may also deal in and sell lime at their works and elsewhere and they may also construct and maintain alter enlarge renew or discontinue houses offices buildings and other works connected with the undertaking.

Power to supply gas fittings. Fittings not to be subject to distress.

18.—(1) The Undertakers may sell let for hire and otherwise deal in fix repair and remove but shall not manufacture engines dynamos stoves ranges pipes fittings and other apparatus appliances and things (in this section called "fittings") for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and do all work necessary or proper in that behalf and with respect thereto may demand and take such remuneration in money or such rents and charges for and make such

[5 EDW. 7.] *Gas and Water Orders Confirmation (No. 1)* [Ch. cxvi.]
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terms and conditions as may be agreed upon between the Undertakers and the persons to or for whom the same are sold let fixed repaired or removed and such remuneration rents and charges shall be recoverable in the same manner as rents or sums due to the Undertakers for gas.

A.D. 1905.
Staveley.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Undertakers as the actual owners thereof.

19. The Undertakers may subject to the provisions of this Order (but only for the purposes of the undertaking within the limits of supply and not so as to acquire any exclusive right therein) contract for take and use any leave licence or authority to work use exercise and put in practice any invention under letters patent heretofore made or hereafter to be made granting any right or privilege of working using or vending any invention in relation to the manufacture supply or distribution of gas or the conversion manufacture or utilisation of any product obtainable in or arising from such manufacture or from the materials used therein.

Power to take
licences for
patents &c.

20. The Undertakers may contract with any local authority company or person beyond the limits of supply (but only with the consent in writing of the local authority of and of any company or person supplying gas under parliamentary powers within the district within which the supply is to be given) for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as shall be agreed upon.

Power to con-
tract for sale
of gas in bulk.

21. In executing the works by this Order authorised where the same will affect any railway or any part of the works or property of the Midland Railway Company (hereinafter called "the Midland Company") the Undertakers shall (except so far as it may be otherwise agreed between the Midland Company and the Undertakers) be subject to the following conditions :—

For protection
of Midland
Railway Com-
pany.

- (1) All works to be done by the Undertakers in the exercise of the powers conferred by this Order shall be executed under the superintendence (if the same be given) and to the reasonable satisfaction of the principal engineer for the time being of the Midland Company and according to plans and drawings to be previously submitted to and reasonably approved by him or in case of difference by an arbitrator appointed in pursuance of this section. Provided that if for fourteen days after such plans and drawings shall have been submitted to the said engineer he shall fail to give notice to the Undertakers of his objections thereto he shall be deemed to have approved thereof :

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- (2) If within fourteen days after the receipt of any such plans and drawings the Midland Company give to the Undertakers notice that they desire themselves to construct so much of the works as will affect any railway or work belonging to them the Midland Company may themselves execute such works and recover the reasonable costs thereof from the Undertakers :
- (3) All works which the Undertakers may execute under this section shall be so constructed as to cause as little injury as may be to the railways works and property of the Midland Company or interruption to the passage or conduct of traffic over the same and if in consequence of the execution of such works any injury be caused to the said railways works and property or any interruption be caused to the traffic the Undertakers shall make full compensation to the Midland Company in respect of such injury or interruption the amount of such compensation unless agreed upon to be determined by arbitration :
- (4) The Undertakers shall bear and on demand pay to the Midland Company the reasonable expense of the employment by that company during the execution of any work affecting their railways of a reasonable number of inspectors watchmen and signalmen to be appointed by that company for watching and signalling the same with reference to and during the execution of any such work of the Undertakers and for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Undertakers or their contractors :
- (5) Any dispute or difference which may arise between the Midland Company and the Undertakers with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed (in default of agreement) by the Board of Trade on the application of the Midland Company or the Undertakers and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

Differences
with road
authorities or
railway or
other com-
panies.

22. If any difference arise between the Undertakers and any road authority or railway canal or other company (other than the Midland Railway Company) whose lands or works the Undertakers have power to cross under the authority of this Order as to the mode of laying down repairing altering or enlarging their mains pipes or other works in over or upon such lands or works or the facilities to be afforded for the same such difference shall be settled by an engineer or other fit person to be appointed by the Board of Trade at the request of either party.

Quality of Gas.

Quality of gas.

23. The quality of the gas supplied by the Undertakers shall with respect to its illuminating power be such as to produce a light equal in intensity to the light produced by not less than fourteen sperm candles and

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shall in all respects be in accordance with the provisions of the Gasworks
Clauses Act 1871.

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Price of Gas.

24. The price to be charged by the Undertakers for gas supplied by them shall not exceed five shillings per thousand cubic feet and so in proportion for any less quantity supplied. Provided that at any time after the expiration of three years from the commencement of this Order the Board of Trade may if they think fit by order in writing to be signed by a secretary or assistant secretary of the said Board alter the said maximum price either by substituting any other sum for the said sum of five shillings or by giving a standard price with sliding scale as to profits and as from the date specified in such order (hereinafter referred to as "the specified date") the price to be charged by the Undertakers for gas supplied by them shall be in accordance with such order. Provided further that in case such order shall prescribe a standard price with sliding scale as to profits then as from the specified date the provisions set forth in Schedule B to this Order annexed shall be in force and have effect and this Order shall be read and construed accordingly. A copy of such order made by the Board of Trade shall be published in the London Gazette and a copy of the said Gazette containing such order shall be conclusive evidence of the due making and validity of the same and of the contents thereof.

Price of gas.

Pressure of Gas.

25. All gas supplied by the Undertakers to any consumer of gas shall be supplied at such pressure as to balance from midnight to sunset a column of water not less than six-tenths of an inch in height and to balance from sunset to midnight a column of water not less than eight tenths of an inch in height at the main as near as may be to the junction therewith of the service pipe supplying such consumer.

Pressure of gas.

Testing Gas.

26. The Undertakers shall within six months after the commencement of this Order cause to be provided at their works a testing place with apparatus therein according to the provisions of the Gasworks Clauses Act 1871 and the burner to be used for testing gas shall be a Sugg's London Argand No. 1 with a six-inch by one-and-three-quarter-inch glass chimney and if at any time the gas flame tails over the top of the glass a six-inch by two-inch chimney shall be used. Provided that any other description of burner may be used which may for the time being be approved for the purpose by the Board of Trade and any gas examiner appointed under the Gasworks Clauses Act 1871 for the purposes of this Order may subject to the terms of his appointment at such testing place or elsewhere as and when he thinks fit test the pressure at which the gas is supplied and for that purpose may open any street road passage or place (not being the immediate approach to any railway or canal bridge or railway station) vested in or under the control of any local or road authority and two hours' previous notice shall be given to the Undertakers of the time and place at which such testing is to be conducted.

Testing gas.

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Miscellaneous.

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As to construction and placing of pipes &c. between mains and meters.

27. In order to enable the Undertakers to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

- (1) The Undertakers may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer either in the first instance or on the occasion of any renewal between the Undertakers' mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises :
- (2) The Undertakers may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time :
- (3) The specification shall be published once in each of two newspapers circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Undertakers :
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Undertakers' main but within the outside wall of the building :
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Undertakers and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Undertakers Any officer of the Undertakers duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Undertakers' specification or if the meter is not placed as required by this section the Undertakers may refuse to supply gas to the premises until the provisions of this section have been complied with :
- (6) Any person to whom the Undertakers refuse a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Undertakers' specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

Power to lay pipes in streets not dedicated to public use.

28. The Undertakers may but only with the consent of the owner of the soil of such street or road upon the application of the owner or occupier of any premises abutting on or being erected in any street or road laid out or made but not dedicated to public use supply such premises with gas and may lay and take up alter relay or renew in across or along such street or road such pipes as may be requisite or proper for furnishing such supply and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking

[5 EDW. 7.] *Gas and Water Orders Confirmation (No. 1)* [Ch. cxvi.]
Act, 1905.

up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

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29. Every consumer of gas supplied by the Undertakers who uses a gas engine shall if required to do so by the Undertakers use an anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and if any consumer shall make default in complying with the provisions of this section the Undertakers may cease to supply him with gas. The Undertakers shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Undertakers if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

Anti-fluctua-
tors for gas
engines.

30. Twenty-four hours' notice in writing shall be given to the Undertakers by every consumer of gas supplied by the Undertakers before he shall quit any premises supplied with gas by meter by the Undertakers and in default of such notice the consumer so quitting shall be liable to pay to the Undertakers the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Undertakers to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be endorsed upon every demand note for gas rent payable to the Undertakers.

Gas consumers
to give notice
to Undertakers
before remov-
ing.

31. A notice to the Undertakers from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office for the time being of the Undertakers.

Notice to dis-
continue sup-
ply of gas.

32. If a person requiring a supply of gas from the Undertakers has previously quitted premises at which gas was supplied to him by them without paying to them all gas or meter rent or other moneys due from him to the Undertakers they may refuse to furnish to him a supply of gas until he pays the same.

Power to re-
fuse to supply
persons in debt
for other prop-
erty.

33. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the last preceding quarter of the year unless it be proved to have first arisen during the current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Undertakers shall be paid by or to the Undertakers to or by the consumer as the case may be and shall be recoverable in like manner as gas rents are recoverable.

Period of error
in defective
meters.

34. No penalty shall be incurred by the Undertakers for insufficiency of pressure defect of illuminating power or for excess of impurity in the gas supplied by them in any case in which it is proved that such insufficiency defect or excess was produced by unavoidable cause or accident.

No penalty
in case of un-
avoidable
cause.

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Discounts.

35. The Undertakers may if they think fit allow discounts or rebates to consumers of gas or other customers of the Undertakers in consideration of prompt payment of gas rents or other debts or large consumption not exceeding in any case fifteen per centum upon such scale and subject to such conditions and regulations as may be prescribed by the Undertakers Provided that all discounts or rebates shall be of equal amount under like circumstances to all consumers and provided also that notice of this enactment shall be endorsed on every demand note for gas rent.

Dwelling-
houses for
workmen.

36. The Undertakers may on any land for the time being belonging to or leased by them erect fit up and maintain houses cottages and buildings for the officers and servants employed by the Undertakers for the purposes of their undertaking.

Undertakers to
pay interest on
deposit.

37. Where any money is deposited by any person by way of security with the Undertakers for the payment to them of any moneys which may become due to them by such person in respect of any supply of gas or of the purchase or hire of any meter the Undertakers shall pay interest at the rate of five pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands.

8 Vict. c. 16.
s. 140 incor-
porated.

38. Section 140 of the Companies Clauses Consolidation Act 1845 shall be and is hereby incorporated with this Order Provided that for the purposes of such incorporation the expression "the company" in the said section shall be construed to mean the Undertakers.

Costs of Order.

39. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

SCHEDULES.

SCHEDULE A.

GAS LANDS.

A piece of land situate in the parish of Staveley in the county of Derby containing 2,500 square yards or thereabouts upon which the works of the Undertakers are erected and bounded on the north-west by the Chesterfield Canal belonging or reputed to belong to the Great Central Railway Company on the south-west by land belonging or reputed to belong to the Chesterfield Brewery Company Limited and numbered 995 in the parish of Staveley as shown on the $\frac{1}{2500}$ Ordnance map dated 1898 marked "Derbyshire xviii. 16" on the north-east by vacant land belonging or reputed to belong to the Duke

of Devonshire and the approach road to the gasworks from the town of Staveley and on the south-east by a field belonging or reputed to belong to the Duke of Devonshire. A.D. 1905.
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SCHEDULE B.

The foregoing Order shall after the making by the Board of Trade of an order in pursuance of the provisions in that behalf therein contained prescribing a standard price for gas supplied by the Undertakers with sliding scale as to profits and as from the specified date be read and construed subject to the modifications following :—

(i) Sections thirty to thirty-four (both inclusive) of the Gasworks Clauses Act 1847 shall not continue to be incorporated with or to form part of the foregoing Order and in construing the said Act for the purposes of the foregoing Order section thirty-five of the said Act shall be read and construed as though the words from “in case the whole” down to “have been paid” all inclusive had been omitted therefrom and as though the expression “the prescribed rate” included the prescribed rates as defined by the foregoing Order together with any sum which under the provisions of this schedule might lawfully be carried to the insurance fund. Sections 30 to 34 of Gasworks Clauses Act 1847 to cease to be incorporated.

(ii) Notwithstanding anything contained in the foregoing Order the standard price to be charged by the Undertakers for gas supplied by them to private consumers by meter shall be the price prescribed by such order of the Board of Trade as aforesaid per thousand cubic feet: Price of gas with sliding scale as to dividend.

Provided that the Undertakers may increase or reduce the price so charged by them for gas [above or below the standard price subject to a reduction or increase in the dividend payable by the Undertakers on the ordinary share capital or stock as follows :—

In respect of any year during any part of which the price charged by the Undertakers shall have been one penny or part of a penny above the standard price the dividend payable by the Undertakers shall in respect of each penny or part of a penny by which the price shall have been increased be reduced below the standard rate of dividend by five shillings on every one hundred pounds of ordinary paid-up capital with a ten per centum standard rate of dividend and three shillings and sixpence on every one hundred pounds of ordinary paid-up capital with a seven per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds :

And in respect of any year during the whole of which the price charged by the Undertakers shall have been one penny or more below the standard price the dividend payable by the Undertakers may in respect of each penny by which the standard price has been reduced be increased above the standard rate by five shillings on every one hundred pounds

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of ordinary paid-up capital with a ten per centum standard rate of dividend and three shillings and sixpence on every one hundred pounds of ordinary paid-up capital with a seven per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds.

If profits exceed amount limited excess may be invested and form an insurance fund.

(iii) If the clear profits of the undertaking in any year amount to a larger sum than is sufficient to pay the prescribed rates the excess beyond the sum necessary for that purpose may to the extent of one per centum per annum upon the paid-up capital of the Undertakers be invested in Government or other securities and the dividends and interest arising from such securities shall also be invested in the same or like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to one-twentieth part of the paid-up capital of the Undertakers which sum shall form an insurance fund to meet any extraordinary claim demand or charge which may at any time arise against or fall upon the Undertakers from accident strike or other circumstance which in the opinion of a court of summary jurisdiction due care and management could not have prevented and if such fund be at any time reduced it may thereafter be again made up to the said limit as often as such reduction happens Provided that when and so often as the said fund reaches the said limit of one-twentieth part of the paid-up capital the interest thereon shall be carried to the credit of the fund available for dividend Provided also that resort may be had to the insurance fund to meet any such extraordinary claim demand or charge as aforesaid although such fund may not at the time have reached or may have been reduced below the full amount of one-twentieth as aforesaid.

Application of further excess of profits over prescribed rates.

(iv) If the clear profits of the undertaking in any year amount to a larger sum than is sufficient to pay the prescribed rates the excess or such portion of it as is not carried to the insurance fund shall be carried to the credit of the divisible profits of the undertaking for the next following year.

Power to create a reserve fund and application thereof.

(v) Where in any year the prescribed rates on the ordinary share capital or stock of the Undertakers exceed the standard rates by reason of the price charged by the Undertakers for gas in such year being below the standard price then out of the amount of the divisible profits of the Undertakers applicable to the payment of such excess of dividends the Undertakers may in such year set apart such sum as they think fit by way of a reserve fund and all sums (if any) so set apart by the Undertakers and any reserve or other fund of a similar character of the Undertakers existing at the specified date in relation to the undertaking may be invested in Government or other securities and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividend in any year in which the clear profits of the Undertakers shall be insufficient to enable the Undertakers in such year to pay the prescribed rates and save as

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by this schedule specially provided no sum shall in respect of the undertaking A.D. 1905.
in any year be carried by the Undertakers to any reserve fund.

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(vi) Nothing in this schedule contained shall alter vary or affect any
contract or agreement duly made or any liability incurred or notice given Saving of
before the specified date with respect to the gasworks of or the supply of gas existing
by the Undertakers. contracts.

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